A NEBRASKA ATTORNEY'S GUIDE

# The Nebraska Stepparent Adoption Starter Guide

*A plain-English overview of the process, timeline, costs, and your options.*

**By Lucrece H. Bundy, Esq.**
Founder, Adoption Forms Express

# Welcome.

A NOTE FROM LUCRECE

I'm Lucrece, and I've been practicing Nebraska adoption law for ten years. In that time I've handled more than 200 adoptions, and a pattern kept emerging: families who clearly belonged together, who'd been raising a child together for years, who knew exactly what they wanted to do — and couldn't afford to do it.

They'd come into my office having saved for years to pay an attorney. Some had given up entirely. Every time, I'd think the same thing — there had to be a better way.

That's why Adoption Forms Express exists. The forms — and the guidance in this guide — come directly out of my practice. They're for the families whose situations are clear enough, and uncontested enough, that paying for full-service representation isn't necessary. Many cases are more complicated than that, and I'll be honest with you about which ones. But for the families who fit, this is meant to be a real path forward.

**What this guide will do for you:**

- Give you a plain-English overview of how Nebraska stepparent adoption actually works
- Show you the timeline you should realistically expect (4–6 months, usually)
- Walk through what it costs, including the parts most people don't know about
- Help you figure out whether your case fits the kind of situation forms can handle, or whether you'd be better off working with an attorney

Whatever brought you here, you're in good company. Stepparent adoption is one of the most meaningful legal proceedings a family can pursue. I'm glad you're considering it.

Let's get into it.

*— Lucrece*



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SECTION 2

02

# Important Legal Note

## A note before we begin.

This guide is general educational information about how Nebraska stepparent adoption works. It is not personalized legal advice for your specific case.

Reading this guide does not establish an attorney-client relationship between you and Lucrece H. Bundy, Esq. or Bundy Law LLC. Every adoption is unique, and the right legal path for your family depends on facts and circumstances that aren't possible to evaluate from a guide.

If your situation involves anything unusual — a contested case, an absent biological parent whose location is unknown, an adoption involving Native American heritage, a case crossing state lines, or anything else that doesn't seem straightforward — please consult a licensed Nebraska attorney before relying on the information here.

This guide is current as of May 2026. Nebraska adoption law can change. For your specific case, verify any specific point with current Nebraska sources or with a licensed attorney.

SECTION 3

03

# What Stepparent Adoption Actually Is

Most families pursuing stepparent adoption already know what they want: legal recognition of a parent-child relationship that, in every meaningful way, already exists. The stepparent has been showing up — driving to school, signing permission slips, navigating bedtime, holding the line on homework. The legal system just hasn't caught up yet.

Stepparent adoption is the formal court process by which a stepparent becomes the legal parent of their spouse's child. After the adoption is finalized, the law treats the stepparent and child the same way it treats biological parents and children. There's no asterisk on the relationship anymore.

## What changes legally when the adoption is finalized:

- The stepparent gains full legal parental rights — decision-making authority over school, medical care, and everything else parents decide
- Inheritance rights are established between the stepparent and child
- The other biological parent's parental rights end (this is significant — it means they no longer have legal standing to make decisions about the child)
- The child's name can be changed if the family requests it (more on this in Section 5)
- A new birth certificate is issued reflecting the adoptive parent

## What does NOT change:

The relationship itself. The child you've been raising is still the child you've been raising. Your spouse is still your spouse. The day after the decree is signed, daily life looks identical to the day before — but the legal status finally catches up to the family reality.



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## Minor children and adult adoptees, both eligible.

Nebraska law recognizes both minor stepparent adoption (when the stepchild is under 19) and adult stepparent adoption (when the stepchild is 19 or older). They follow different procedures in some respects, which Section 5 covers in detail. But both are real, valid legal paths under Nebraska Revised Statute § 43-101.

This guide covers both. If you're adopting a minor child, the procedural details will differ slightly from someone adopting their adult stepchild — but the foundational concepts apply across both situations.

## Why families pursue it.

Different families choose stepparent adoption for different reasons. Some of the most common:

- **Legal security.** If something happens to the biological parent — illness, death, incapacity — the stepparent's legal status as parent is established and unambiguous.
- **Inheritance and estate planning.** Stepparent adoption creates clear inheritance rights and removes ambiguity about how the child fits into estate plans.
- **Name unification.** Many families pursue adoption specifically so the child shares the family's last name. There's something powerful about a child belonging — clearly, visibly, on every form they fill out — to the family they're actually part of.
- **Recognition of a relationship that already exists.** For many families, the adoption is the legal acknowledgment of years of parenting that have already happened. It's not creating a relationship; it's recognizing one.

Whatever reason brought you here, you're in a real category of families that Nebraska law is set up to serve.

## A note on what's distinct about Nebraska.

Adoption law varies state by state. The procedures, costs, and timelines described in this guide are specifically about Nebraska. If you live in another state, even one nearby, the rules will be different in ways that matter — and an Iowa or South Dakota family should not rely on a Nebraska-specific guide for their case. Nebraska residency is a foundational requirement for using these procedures and these forms.


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SECTION 4

04

# When Nebraska Stepparent Adoption Can Be Done Without Full Attorney Representation

This is the most important section in the guide, so I want to be very direct about what it is — and what it isn't.

## The general rule first.

Most Nebraska adoptions require an attorney. Adoption is one of the more procedurally demanding legal proceedings a family can pursue, and Nebraska's adoption statutes (Neb. Rev. Stat. §§ 43-101 to 43-115) reflect that complexity. The Nebraska Supreme Court has been clear that, as a general matter, the parental rights of an existing parent must be either terminated by a court or relinquished by the parent before any child can be adopted. (*In re Adoption of Luke*, 263 Neb. 365, 2002.)

Stepparent adoption is the carved-out exception. Nebraska law specifically allows it because the existing parent (your spouse, the child's biological parent) is not relinquishing the child — they're staying in the family. The other biological parent's involvement is what determines whether the case is straightforward or complicated.

**There are three specific situations where the case is straightforward enough that a forms-based path can work.** If your case fits one of these three scenarios — and nothing else about your case is unusual — you may be able to use the DIY or Done-For-You forms package from Adoption Forms Express instead of hiring an attorney. If your case doesn't fit one of these three, you need an attorney.

Let's go through them.



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## Scenario 1 — The other biological parent consents to the adoption.

This is the most common scenario. The other biological parent — the child's other legal parent — agrees to the adoption and signs a written consent that gets filed with the court. With consent on file, the adoption is uncontested.

What "consent" actually means matters. Under Neb. Rev. Stat. § 43-104, consent must be in writing, signed by the consenting parent, and filed with the petition. A verbal agreement, an email exchange, or "they said they were fine with it" is not legal consent. Without a properly executed written consent, the case becomes contested — and contested cases require an attorney.

If you're not certain the other parent will sign, treat the case as contested until the signed consent is in your hands. Don't buy the forms hoping the consent will come through later.

> *If you're not certain the other parent will sign, treat the case as contested until the signed consent is in your hands.*

## Scenario 2 — The other biological parent is deceased.

When one biological parent has died, only the surviving parent's consent is required (§ 43-104(1)(b)). A certified death certificate filed with the petition serves as proof. This is operationally the cleanest scenario — there's no consent question to resolve and no other parent's interests to address.

For adult stepparent adoptions, the adult adoptee's own consent is also required. (For minor children over fourteen, the child's consent is required under § 43-104(1)(a); for younger minors, parental consent governs.)

## Scenario 3 — The other biological parent's rights have been previously terminated through a separate court action.

When the other biological parent's parental rights were terminated by a court — in a juvenile court proceeding, a district court action, or another prior legal proceeding — that parent no longer holds parental rights. They no longer have the legal standing to consent or object, because their rights as a parent have been ended by court order.

The critical word here is **previously**. This scenario is about a termination that has *already happened*, documented by an existing court order. The certified termination order gets


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filed with your stepparent adoption petition as proof.

This is NOT the same as wanting to terminate the other parent's rights as part of your stepparent adoption. That's a contested proceeding — it requires an attorney, and it's not what these forms cover.

## A few things that might LOOK like disqualifiers but actually aren't.

Before getting to the situations that genuinely require an attorney, I want to address a few things families often worry about that don't actually disqualify a forms-based path:

- **The other biological parent lives in another state.** Geographic distance alone is not a problem. If they consent to the adoption, you can mail them the consent form to sign and return. The signed consent gets filed with your petition the same way.
- **There's an existing out-of-state custody order.** This isn't a disqualifier either. You'll need to obtain a certified copy of the custody order from the courthouse that issued it, and file it with your petition. That's an extra logistical step, not a contested case.

If the other parent agrees and the case is otherwise straightforward, geography and prior custody orders don't push you out of forms territory.

## What is NOT in scope for these forms.

These are the situations that genuinely require full attorney representation. If any of them describes your case, please don't try to force it into a forms-based path:

- **Abandonment cases.** If the other biological parent has been absent for an extended period — no contact, no support, no involvement — you might think this fits Scenario 3. It doesn't. Abandonment is a complicated legal claim that the court evaluates carefully, often by appointing a guardian ad litem to represent the child's interests and protect the absent parent's procedural rights. These cases are fact-intensive and procedurally demanding. They're not appropriate for forms.
- **Cases where you want to terminate the other parent's rights as part of the adoption.** Termination of parental rights is its own contested legal proceeding. If termination needs to happen as part of your case, you need an attorney.
- **Cases where the other parent's whereabouts are unknown.** When you can't locate the other biological parent to obtain consent, Nebraska law has specific procedures involving diligent search and notice by publication (§ 43-104.14). These procedures require attorney handling.



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- **Cases involving the Nebraska Indian Child Welfare Act.** When the child has Native American heritage that triggers ICWA (§ 43-1501 et seq.), specialized procedural requirements apply. These cases need an attorney with ICWA experience.

If any of the above describes your case, working with a full-service attorney isn't a failure — it's the right tool for the job. Bundy Law LLC handles complex and contested cases.

## The qualifier quiz exists to make this clear.

The qualifier quiz at adoptionformsexpress.com is designed to ask the questions that matter — about the other biological parent's status, about your spouse's role, about anything that might make the case complicated. If your answers indicate your case fits one of the three scenarios above and doesn't have any of the not-in-scope complications, the quiz routes you to the right forms package. If your answers indicate the case needs an attorney, the quiz tells you that directly.

The honest goal of the quiz is to make sure no one ends up with the wrong product. If you have any uncertainty about whether your case fits — even a small one — take the quiz, or contact a Nebraska adoption attorney directly. Don't guess.


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SECTION 5

05

# Minor vs. Adult Stepparent Adoption

## Minor children and adult stepchildren — both eligible, with some procedural differences.

If your stepchild is under 19, you're pursuing a minor stepparent adoption. If they're 19 or older, it's an adult stepparent adoption. Nebraska law recognizes both — they're two paths in the same general legal framework — but a few things differ between them.

## For minor stepparent adoption:

- The other biological parent's consent matters substantially (per Section 4)
- A home study is generally waived for stepparent adoptions. While Nebraska law makes the home study technically discretionary in stepparent cases (§ 43-107(1)), in practice the courts almost always waive it for these cases.
- Background checks are required for the petitioner — both an FBI/national criminal history check and a Child Abuse Central Registry check (more on this in Section 7)
- If the child is over fourteen, the child's own consent is required (§ 43-104(1)(a))
- The court applies a best-interests-of-the-child standard at the hearing

## For adult stepparent adoption:

- The adult adoptee must consent in writing — this is non-negotiable
- Home studies are exempt by statute (§ 43-107(1)(b)(v)), unless the court orders otherwise (rare)
- The six-month residency requirement that applies to minor adoptions does NOT apply to adult adoptions (§ 43-109)
- If the adoptive parent is married, the spouse must join the petition (§ 43-101(2))



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## Name changes are available in both.

One of the most common reasons families pursue stepparent adoption — minor or adult — is to legally unify the family name. Nebraska law allows the court to decree a name change for the adopted person (minor or adult) as part of the adoption decree, when the persons petitioning the court ask for it (§ 43-109(3)). You don't need a separate name-change proceeding.

For minors, the parents typically request the name change. For adults, the adult adoptee requests it. Either way, it gets handled within the same petition and the same final decree.

### Why now? Common reasons families pursue stepparent adoption when they do

One question I find myself asking nearly every family in my practice is some version of "why now?" Often the spouses have been married for years, sometimes a decade or more. The relationship between stepparent and child has been parental from the start. So what made this the right time to pursue the legal step?

The answers are different for every family, but a few patterns come up repeatedly:

**The child is now old enough to say what they want.**
Some families wait until the child can articulate, in their own words, that they want their stepparent to adopt them. There's something powerful about a child being able to express that themselves — and judges often appreciate hearing it.

**The other biological parent has been absent long enough to feel settled.**
Some families wait through a period of inconsistency or sporadic contact, hoping things would change. When they don't, the family eventually decides it's time to make the legal status match the actual reality.

**A health scare or estate-planning conversation prompts it.**
A common one I hear: a parent thinking, “what happens to my child if something happens to me? I don't want them to end up back with the other parent who's never been around.” Adoption settles that question.

**A wedding or a move or a milestone makes the family name important.**
Sometimes it's not about legal protection at all. It's about a child who's tired of explaining why their last name is different from everyone else's at home.

Whatever brought you to this moment, the timing is yours. There isn't a “too soon” or “too late” in the law — only in the family's own readiness.



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SECTION 6

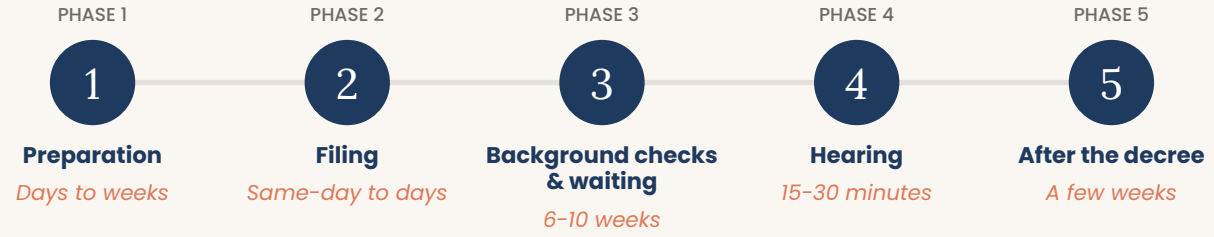
06

# Timeline Expectations

## How long does a stepparent adoption actually take?

Most uncontested Nebraska stepparent adoptions take **four to six months from the date of filing to the date the decree is signed.**

Here's what the timeline looks like in practice:




## Phase 1 — Preparation (a few days to a few weeks).

This is the time you spend gathering documents and completing forms. Death certificates, prior court orders, consent forms, the petition itself. If you're using the DIY package, this phase depends on how much time you can carve out to focus. If you're using the Done-For-You package, this phase is mostly waiting for our team to complete the forms and send you the final versions ready to file.

## Phase 2 — Filing (same-day to a few days).

You file the petition with your county court clerk. Pay the filing fee. Depending on your county, this might be done in person or electronically. The court clerk stamps the petition, assigns it a case number, and the case is officially open.



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## Phase 3 — Background checks and waiting for the hearing date (six to ten weeks, typically).

This phase is mostly administrative. The court will set a hearing date, which depends on the judge's calendar. While you're waiting, you'll complete the required background checks (Section 7 walks through this in detail). For minor adoptions where a home study is ordered, this phase also includes the home study itself.

## Phase 4 — The hearing (15 to 30 minutes, typically).

You appear at the courthouse on the hearing date. The judge asks a few questions, confirms consent where applicable, and signs the decree. This is the part most families build up in their heads as scary; in practice, it's usually the easiest phase. Section 10 covers what to expect.

## Phase 5 — After the decree (a few weeks for follow-through).

Once the decree is signed, there's some follow-up work: ordering certified copies of the decree, updating the birth certificate (if the name changed), and updating other records (Social Security, school enrollment, etc.). None of this is hard — it's just paperwork that can't happen until the decree exists.

The whole timeline, start to finish, is typically four to six months. The court calendar is the bottleneck — your case isn't slow, it's just waiting in line.


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SECTION 7

07

# Cost Breakdown

## What does a stepparent adoption actually cost?

The complete cost of a Nebraska stepparent adoption depends on a few variables, but the individual line items are fairly predictable. Here's what to plan for.

## Court filing fee — $70 to $75.

Paid directly to your county court clerk when you file the petition. The amount varies slightly by county. The clerk will tell you the exact fee for your county at the time you file.

## Background checks — about $40 to $55 total.

Two separate background checks are required for the petitioner under § 43-107:

- **FBI / national criminal history check.** You'll go to a Nebraska State Patrol office to be fingerprinted. The fingerprinting plus processing typically runs around $40 to $50. The State Patrol submits your prints to the FBI and sends the results directly to the courthouse where your case is pending — you don't handle the results yourself, and you can't substitute results from a previous employment or military background check.
- **Child Abuse Central Registry check.** Administered by the Nebraska Department of Health and Human Services through their online system. The fee is less than $5.

## Certified copies of the finalized decree — usually less than $10 for six copies.

After the adoption is finalized, you'll want certified copies of the decree. The certified copies are the only legal proof that the adoption ever happened — they're the document you'll need any time you update records (Social Security, passport, school enrollment, doctor's office) or any time someone official needs to verify the adoption.

Order at least six. Two or three will get used right away — Social Security, a passport for the child, similar updates. The remaining copies stay in your safe as backup. Six copies usually costs less than $10, though some counties run slightly higher.



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Don't be tempted to order just one or two. The certified copies aren't replaceable on demand — getting more later means another trip to the courthouse and another fee.

## Updated birth certificate — $30 to $40.

If your case includes a name change for the child, you'll need to order an updated birth certificate from Nebraska Vital Records reflecting the new name and adoptive parent. The fee is around $30 to $40.

## Forms preparation.

This is where the choice between DIY and Done-For-You matters:

- **DIY package (Adoption Forms Express): $299.** Attorney-prepared forms, step-by-step instructions, and one 30-minute support call. You complete the forms yourself.
- **Done-For-You package (Adoption Forms Express): $499.** Our team completes the forms for you, plus two 15-minute support calls. You file the completed forms with your county court.

AT-A-GLANCE COSTS

| | |
|---|---|
| Court filing fee | **$70 - $75** |
| Background checks (FBI + Registry) | **$40 - $55** |
| Certified copies (six) | **Less than $10** |
| Updated birth certificate (if name change) | **$30 - $40** |
| DIY package | **$299** |
| Done-For-You package | **$499** |


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SECTION 8

08

# Required Forms Overview

## What forms are involved?

A Nebraska stepparent adoption involves a small set of court forms — the exact forms depend on which scenario from Section 4 applies to your case. Here's a high-level look at what gets filed.

## The forms required in every stepparent adoption case:

- **Petition for Adoption.** This is the document that opens your case. It identifies who's adopting whom, what scenario applies, what the family's circumstances are, and what the petitioners are asking the court to do (including any name change). Both spouses must sign the petition — the adopting stepparent and the biological parent — whether the adoption is for a minor child or an adult stepchild.
- **Affidavit from the custodial biological parent.** A sworn statement from the biological parent (the spouse) identifying the other biological parent. Required in every stepparent adoption case.
- **Notice of Adoption.** A formal notice of the adoption proceeding required by Nebraska procedure.
- **Decree of Adoption (proposed).** The proposed final order. The judge reviews it, asks any necessary questions at the hearing, and signs it to finalize the adoption.
- **Background-check authorizations.** Required for the petitioner under § 43-107.

## Forms that depend on your scenario:

- **Consent forms.** Required when consent is the basis for the adoption. Different consent forms apply depending on who's consenting:
  - The other biological parent's signed written consent, when they consent to the adoption
  - The adult adoptee's consent, in adult stepparent adoption cases



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  - A minor child's consent if the child is fourteen or older (§ 43-104(1)(a))
- **Death certificate.** When the other biological parent is deceased, a certified death certificate is filed with the petition as proof.
- **Certified copy of the prior termination order.** When the other biological parent's parental rights were previously terminated through a separate court action, a certified copy of that termination order is filed with the petition as proof.

## A few things worth knowing:

The forms used in Nebraska stepparent adoption are Nebraska-specific — they're consistent statewide and don't vary by county. The Adoption Forms Express packages (DIY and Done-For-You) provide the right forms for your case based on which scenario applies.

The form set itself varies based on which scenario from Section 4 applies. The qualifier quiz at adoptionformsexpress.com asks the questions needed to identify the right form set for your case before any forms are sent.

If your case has any complication that takes it out of the three qualifying scenarios — abandonment, an absent parent whose location is unknown, ICWA implications — these are the cases where attorney representation matters and where a forms-based path won't fit.


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SECTION 9

09

# DIY vs. Attorney Representation: Which Is Right for You?

## Which path fits your case?

There's no universal answer to whether you should DIY a stepparent adoption, use the Done-For-You package, or hire a full-service attorney. The right choice depends on your specific situation.

| | DIY | Done-For-You | Full Attorney |
|---|---|---|---|
| Cost | $299 | $499 | Varies by attorney |
| Who fills out the forms | You do | Our team does | Your attorney's team |
| Support included | One 30-min support call | Two 15-min support calls | Full representation |
| Best when | Case clearly fits one of three scenarios; you're comfortable with paperwork | Case fits scenarios; you'd rather not handle forms yourself | Anything contested, complicated, or uncertain |
| Don't choose if | Anything feels uncertain about your case | Anything feels uncertain about your case | Your case is uncontested and clearly fits a scenario |

Here's an honest framework for thinking it through in more detail.

## DIY makes sense when:

- Your case clearly fits one of the three scenarios from Section 4 (consent, deceased parent, or previously terminated rights)



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- The consent or documentation needed is firmly in hand — written, signed, certified
- You're comfortable reading instructions and filling out paperwork carefully
- Nothing about your situation feels uncertain or unusual
- A 30-minute support call is enough to resolve any confusion that comes up
- You want to keep the cost as low as possible

DIY is the right path for the family who can confidently say “my case fits — I just need the right forms and a clear set of instructions to file them.”

## Done-For-You makes sense when:

- All of the DIY criteria above PLUS
- You'd rather pay $200 more to have someone else complete the forms for you
- Your time is more valuable than the savings on DIY

Done-For-You is the right path for the family who fits the scenarios but would rather not handle the form preparation themselves.

## Full attorney representation is needed when:

- Your case doesn't clearly fit one of the three scenarios from Section 4
- Consent isn't yet in hand and you're not certain you'll get it
- The other biological parent is unwilling, unreachable, or whose whereabouts are unknown
- There's an ongoing custody dispute, or anyone is contesting any aspect of the adoption
- The case has any complicating factor — ICWA, contested termination, anything else unusual
- You're not sure which category you're in

Full attorney representation isn't a fallback — it's the right tool for any case that's genuinely complicated. Many adoptions need full representation, and there's no shame in that. The cases the forms-based products serve are specifically the uncontested, scenario-clear cases. Everything else is what attorneys are for.


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## A practical way to decide:

If reading Sections 4 through 8 made you feel “yes, that describes my case clearly” — you probably fit a forms-based path.

If reading those sections made you feel “yes, mostly, but I'm not sure about [X]” — that uncertainty is worth taking seriously. Sometimes the X turns out to be nothing. But sometimes it turns out to be exactly the thing that pushes the case into needing an attorney. Take the qualifier quiz, or contact a Nebraska adoption attorney to talk through your specific situation, before committing to forms.

If reading those sections raised real concerns — abandonment questions, unwillingness on the other parent's part, anything contested — work with an attorney from the start. The forms aren't going to be the right path, and you'll save time and stress by recognizing that early.

## A note about cost as a factor:

I want to be honest about something. Cost is often the reason families consider DIY when DFY or full representation might fit better. I built Adoption Forms Express specifically to make the affordable path real for the families who legitimately fit it. But “I want this to be affordable” is not the same as “my case is uncontested and clear.” If your case truly needs an attorney, finding the money for one is the right thing to do. The path that fits your case is the path that finishes your adoption — the cheaper path that doesn't fit can cost you significantly more in time, stress, and ultimately money.

> *“The path that fits your case is the path that finishes your adoption.*


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SECTION 10

10

# What to Expect at the Hearing

## The hearing is usually the easiest part.

Most families build up the hearing in their heads as the scariest part of the adoption. In practice, it's usually the most reassuring — the moment where the judge looks at your family, asks a few questions, and signs the decree that finalizes everything you've been working toward.

Here's what to expect.

## Where it happens.

In your county court — usually a courtroom, sometimes the judge's chambers depending on the county. Your county court clerk will tell you when you file. Plan to arrive at least fifteen minutes early to find parking, get through any security check, and locate the courtroom.

## Who attends.

Three people are required to be present at the hearing — none of them can skip it:

- The petitioner (you, the adopting stepparent)
- Your spouse (the biological parent)
- The child or adult being adopted

Beyond the required three, families are welcome to invite others. Grandparents, siblings, close friends, godparents — the hearing is a meaningful family moment, and it's not unusual for several family members or friends to attend in support. If your family wants to make a small celebration of it, you're welcome to.



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## What the judge asks.

The judge's questions tend to be centered around the family and the relationship between the stepparent and the child being adopted. Judges have their own styles, but the questions are generally warm and conversational, not formal.

For minor adoptions, the judge typically won't ask the child many questions. When they do, the questions are friendly and orienting:

- “Where do you go to school?”
- “Do you know what's happening today?”

The intent is to make sure the child is comfortable, not to test them.

For adult adoptions, the judge will speak with the adult adoptee directly to confirm the adoption is voluntary and that they understand the legal relationship being established. These conversations are also generally warm and brief.

In all cases, the judge will confirm the basic facts of the petition — who's adopting whom, the requested name change (if any), and that consent (where applicable) is on file. The judge generally signs the decree at the hearing, or shortly after.

## How to prepare.

A few practical things that help:

- Dress as you would for a job interview. Business or business-casual is appropriate.
- Bring identification for everyone in your party.
- Bring an extra copy of any documents the court asked you to bring.
- Plan to be at the courthouse for an hour total, even though the hearing itself is short. Court calendars sometimes run behind.

Most uncontested stepparent adoption hearings are warm, brief, and uneventful in the best way. Many families say afterward that they wish they hadn't worried so much.


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SECTION 11

11

# Common Pitfalls

## Common pitfalls — and how to avoid them.

Over the past ten years, I've watched families run into the same problems again and again. The good news is that most of these problems are preventable if you know to look for them. The three biggest ones I see:

## Pitfall 1 — Hiring a family law attorney who doesn't actually do adoptions.

This one costs families more time and money than any other mistake. There's a common assumption that any family law attorney can handle a stepparent adoption — after all, it's a family law matter, right?

It's not that simple. Adoption is a specific area within family law, with specific procedures, specific forms, and specific judges' expectations. A family law attorney whose practice is mostly divorces, custody, and child support may not have done many adoptions. And when an attorney is learning your case as they go, the bill grows and the timeline stretches.

If you're hiring full-service representation, you want an attorney who can confidently walk you through the adoption process from start to finish — someone who can answer your questions about the procedure, the forms, and what to expect at the hearing without having to look it up. That confidence comes from having actually done adoptions before. Ask the attorney about their adoption experience directly. The right attorney for your case will be glad to tell you.

## Pitfall 2 — Trusting generic online forms or out-of-state advice.

Two versions of this mistake come up regularly:

The first is families finding “free adoption forms” online — usually generic templates that aren't Nebraska-specific, or that don't match the specific scenario their case fits. These forms get filed, the court rejects them, and the family is back to square one. Sometimes worse than square one, because the rejected filing has now used up filing fees and time.



*General educational information only. Not legal advice. Reading does not establish an attorney-client relationship.*

The second is taking advice from family or friends who adopted in a different state. They mean well, and their experience was real — but adoption law varies significantly state to state. The forms that worked for them in Iowa or Kansas or Texas don't apply in Nebraska. The procedures they followed may not be the procedures Nebraska courts use. Even small differences (which forms are required, what consent looks like, what the hearing involves) can mean their advice steers you wrong without anyone realizing it.

If you're using forms-based products, make sure they're Nebraska-specific and matched to the scenario your case fits. If you're following advice from family or friends who've been through this, ask them where they did their adoption — and if it wasn't in Nebraska, treat their advice as a starting point for questions rather than a roadmap.

## Pitfall 3 — Buying the forms and then not reading the instructions.

This one is harder to talk about because it isn't anyone's intent — but it happens. A family buys the DIY package, opens the email, looks at the forms, gets overwhelmed, and tries to fill them out without working through the step-by-step instructions that came with them.

The instructions exist because the forms aren't self-explanatory. Some questions need careful answers. Some sections only apply if your case fits a specific scenario. Some require supporting documents that need to be gathered first. Skipping the instructions almost always means filling something out wrong, which means the case gets delayed at filing or at the hearing.

If you're going the DIY route, build time into your process specifically for reading the instructions before you start filling anything out. Most families spend 30 to 60 minutes on this initial read-through. That hour is the cheapest insurance against problems later.


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SECTION 12

12

# Next Steps

## What to do now.

You've made it through the guide. Whether you read every section carefully or skipped to the parts that mattered for your case, you should now have a clearer picture of what's involved in Nebraska stepparent adoption, what your options are, and which path might fit your situation.

Here's what to do next.

## 1. Take the qualifier quiz.

If your case feels like it fits one of the three scenarios from Section 4 and doesn't have any of the complicating factors from Section 9, the qualifier quiz at adoptionformsexpress.com will route you to the right product in about 60 seconds.

The quiz is designed to do one job: make sure you don't end up with the wrong product. If your case fits, it'll point you to the right package. If your case needs an attorney, it'll tell you that directly and recommend you reach out for full-service representation.

## 2. If you qualify, choose your package.

- **DIY ($299):** Attorney-prepared forms, step-by-step instructions, and one 30-minute support call. You complete the forms yourself.
- **Done-For-You ($499):** Our team completes the forms for you, plus two 15-minute support calls.

Either package gives you Nebraska forms prepared by a licensed Nebraska adoption attorney for the specific scenario your case fits.



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## 3. If your case doesn't fit, find an attorney.

If the quiz tells you that your case isn't a fit for forms-based products, please don't try to force it. Bundy Law LLC (lbundylaw.com) handles complex and contested adoption cases. Other Nebraska adoption attorneys are available too. The right attorney for your case is the one who fits your specific situation and budget.

**Whichever path is yours — go take the next step.**


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CLOSING

# A Final Note from Me

You made it to the end. Whether you read the whole guide or skipped to the parts that mattered for your case, I hope it gave you what you needed: a clearer picture of what's ahead, an honest sense of what fits and what doesn't, and confidence about what to do next.

If you're in one of the three situations this guide describes — the other biological parent consents, has previously had their rights terminated, or is deceased — and your case is otherwise straightforward, the qualifier quiz at adoptionformsexpress.com will route you to the right product. Most families finish the whole adoption process within four to six months of filing, and most of them are surprised at how manageable it turns out to be.

If your situation is more complicated than that, please don't try to force it into a forms-based path. Some adoptions need an attorney, and that's not a failure — it's just the right tool for the job. Bundy Law LLC handles complex and contested cases.

A last thought, from someone who's now been doing this work for ten years: the families I've worked with who pursue stepparent adoption are doing something quietly extraordinary. They're using the legal system to formalize what's already true — that a child belongs in this family, with this name, surrounded by these people. There's nothing more meaningful in adoption work, and it's why I've kept doing it.

Wishing you well in whatever comes next.

*— Lucrece*

Lucrece H. Bundy, Esq.
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